



LLA Realty Partners, LLC
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Houston, TX 77069
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832-206-7787

MANAGEMENT AGREEMENT

This Management Agreement (this "Agreement") is made and entered into by and between the Martin Court Owners Association. (the "Association") and LLA Property Partners, LLC., a Texas limited liability company, dba LLA PROPERTY PARTNERS ("LLA PROPERTY PARTNERS").

ARTICLE I

APPOINTMENT OF MANAGING ACCOUNT

The Association was created pursuant to that certain Certificate of Formation dated August 30, 2022 (filing date), filed with the Texas Secretary of State, and its Bylaws dated August 30, 2022 to be the "Association", as that term is defined in the Declaration for Martin Court Owner Association LLC, recorded as Harris County Clerk's File No. RP-2022-438456 (the "Declaration"), which Declaration governs the development and use of the real property described as Martin Court (the "Property").

The Association hereby appoints LLA Property Partners and LLA Property Partners, hereby accepts such appointment on the terms and conditions herein contained as the Managing Agent of the Association in accordance with the terms and provisions of this agreement and to otherwise perform the obligations as hereinafter set out. On or before the date of execution of this Agreement, the Association shall provide to LLA PROPERTY PARTNERS, at no cost to LLA PROPERTY PARTNERS, the documents listed in Exhibit "B" attached hereto.

ARTICLE II

RESPONSIBILITIES OF MANAGING AGENT

The role of the Managing Agent is to implement the decisions and the policy established by the Board of Directors of the Association. The Board of Directors of the Association has control of all Common Areas and amenities and is responsible for the administration of the programs, services, and activities of the Association as established in the Association's Governing Documents and as amplified or clarified by resolution of the Association. Subject to direction by the Board of Directors of the Association, LLA PROPERTY PARTNERS's functions, duties, responsibilities, and authority may include the following:

Section 2.1. Administrative Services.

2.1.1 Organize meetings of Owners including the preparation of notices, agendas, and other necessary documents.

2.1.2 Organize meetings of the Board of Directors of the Association including the preparation of notices, agendas and other necessary documents.

2.1.3 Guide and assist members of the Board in the performance of their obligations.

2.1.4 Guide and assist the Board in the development of policies and procedures.

services not contemplated by this Agreement. If the Association requests that LLA PROPERTY PARTNERS perform an act which LLA PROPERTY PARTNERS in good faith believes to be a violation of the law or the Governing Documents, it may seek an independent legal opinion with permission and at the expense of the Association and may act in reliance on such opinion. If the Association does not grant such permission, LLA PROPERTY PARTNERS shall be released of any and all obligations to perform such act and shall not be liable to the Association or any third party for its failure or refusal to perform such act.

Section 6.7. Inventory Maintenance. It is expressly agreed that LLA PROPERTY PARTNERS shall not be responsible for inspecting, supervising, or maintaining the Association's inventory or tangible personal property, if any.

Section 6.8. Applicable Law. This Agreement shall be construed in accordance with and enforced under the laws of the State of Texas.

Section 6.9. Assignment. LLA PROPERTY PARTNERS shall not assign its interest under this Agreement except with the sale of all or a substantial part of its management business. In the event of such assignment LLA PROPERTY PARTNERS shall be released from any and all liabilities under this Agreement except those which arose prior to the date of such sale. In the event of such a sale, the Association, at its option, may terminate this Agreement in accordance with the provisions of Article 4.

Section 6.10. Survival. All obligations of the parties hereunder, which contemplate performance after the termination of this Agreement (including, but not limited to the hold harmless/indemnification and security provisions) set out herein, shall survive the termination of this Agreement and shall be in full force and effect after the termination of this Agreement.

Section 6.11. Amendments. This Agreement constitutes the full understanding of the parties and no prior or contemporaneous oral or written representations made by either party shall be binding. This Agreement may be modified only in writing signed by an authorized representative of LLA PROPERTY PARTNERS and by the duly authorized representative of the Association.

Section 6.12 No Partnership. Nothing herein is intended to, shall, or shall be deemed to, create a joint venture or partnership of any kind between the parties hereto, or any relationship other than that of an agent and principal.

Section 6.13 Binding Effect. This Agreement shall inure to the benefit of and be binding upon the successors and assigns of the parties hereto.

Section 6.14 Time. Time is of the essence of this Agreement. If the date or deadline for performance of any obligation or delivery of any notice shall fall on a weekend or holiday, performance thereof shall be extended to the next business day.

IN WITNESS THEREOF, the parties have caused this agreement to be executed on this 26th day of August, 2023.

LLA Property Partners, LLC, a Texas limited liability company

By:

Lori L Anderson

Lori L Anderson, HOA Manager

LLA Property Partners, LLC
a Texas corporation

MARTIN COURT OWNERS ASSOCIATION, INC.

Signature: *Cesar Ibanez*

Printed Name:

Title: President

Signature: *Christina Linder*

Printed Name:

Title: Vice President

Signature: *Dany De La Cruz*

Printed Name:

Title: Treasurer